I. PATENTABILITY CRITERIA :

Introduction:

The Patent is granted by the sovereign of the country for the Invention claimed by the inventor(s) which gives him/her territorial rights for excluding others from making, using, selling, offering to sell or for importing. To get the granted Patent, which is essential for the enforceability, every country has its criteria to judge the invention. Usually, Novelty, Inventive Step/Non-Obviousness and Industrial Applicability are the common criteria for judging an invention.

Below Are The Criteria For Judging An Invention:

For the Patent to be granted, an invention should be a product, or process that has:

1. **Novelty:**
   The invention must create new knowledge or product or process. It should not be anticipated by the document, granted Patent, published Patent, non-Patent literature or in any form which is already available in the public domain. It must be different from what is already known.

2. **Inventive Step:**
   The invention must have some creative input from the inventor. It should be something which is not expected by the person skilled in the art. If an inventor is solving some technical problem by inventing something and if the person skilled in the art who is from the same field is providing the same solution by using his acquired knowledge or by taking teaching, suggestion or motivation, in that case the technical solution provided by the inventor will not be considered as inventive in nature.

3. **Industrial Application:**
   Patents are granted to ensure that the inventor can exploit his/her invention freely, without the fear of competition. In this context, it is necessary that the invention is capable of being used and has industrial application. An invention should be used or manufactured in the form of a product or process.

Conclusion:

From the above discussion, it is clear that the granted Patent requires lots of checks and clearances. Every Government judges the claimed invention by its established law or rule or criteria. Therefore, it is worth to check and follow the country-specific Patentability requirement in order to avoid the rejection of a filed Patent application from the Patent office.

II. TYPES OF IPR WITH EXAMPLES (5 TYPES)

1. Patents :

1.1 What is a Patent?

- A patent is a government license granting exclusive rights to make, sell, or use an invention for a limited time.
- Patents prevent others from using your invention, not just selling it.
- Patents are crucial for companies and inventors, representing valuable intellectual property.
- Patents reflect inventive ideas, showcasing human imagination.

1.2 What Can Be Patented?

- Patents can cover:
- Processes
- Machines
- Manufactured items
- Chemical compounds (e.g., pharmaceuticals)
- To be patentable, an invention must be novel, useful, and non-obvious.
- Usefulness Requirement

Note :

- A patent may be granted even if the invention's usefulness is unconventional or humorous.

1.3 Criteria for Patentability :

- An idea must be Novel (new and useful)
- It cannot already be patented or described in a published application.
- Non-patent literature and publicly available information can also count as prior art.
- Technically advantageous: Must have technical and economic significance.
- Useful: Has practical application.

1.4 What is Prior Art?

- Prior art includes patents, patent applications, public presentations, trade shows, websites, and more.
- Prior art is any information publicly available that describes the invention.
- A broad search is necessary to ensure novelty.

1.5 Patent Filing Process

Step 1: Conduct a novelty or prior art search

Step 2: Draft a patent application and file it.

Step 3: Patent Application Submission: Filed at the Patent Office.

Step 4: Scrutiny by Patent Office: Evaluates the application for compliance.

Step 5: Grant of Patent: Upon approval, transforms into a granted patent.

Step 6: Patent Prosecution: The process from filing to grant.

Step 7: Patent Enforcement: Infringement disputes handled by courts, not the Patent Office.

Note : Pre-Grant Publication (PGP) occurs before the patent is granted, publishing the application.

1.6 Patent Rights and Duration

- Exclusive Rights: Patents provide the right to exclude others from:

    i. Making,

ii. Selling,

iii.using, offering for sale,

iv. importing the invention.

- Territorial Nature: Patents are jurisdiction-specific (e.g., Indian patents only enforceable in India).
- Term of Protection: 20 years from the application date.

1.7 Importance of Patents

- Incentivizing Innovation: Protects inventors from competition, encourages investment in R&D.
- Prevents Copying: Without patents, inventions could be easily copied by competitors.

1.8 International Conventions and Treaties

- Paris Convention: Facilitates international patent filing.
- TRIPS Agreement (WTO): Standardizes patent laws across member countries.
- Patent Cooperation Treaty (PCT): Simplifies multi-country patent applications.

1.9 Evolution of Indian Patent Law

- Pre-Independence: Governed by the 1911 British Act.
- Post-Independence Committees:
    - Tek Chand Committee
    - Ayyangar Committee: Recommended changes to promote national development.
- Patent Act 1970: Introduced:
    - Removal of product patents for pharmaceuticals.
    - Reduced term for food and medicine patents.
    - Compulsory licensing provisions.

1.10 Amendments Aligning with TRIPS

- WTO Membership (1995): Triggered amendments to comply with TRIPS.

Amendment Timeline:

- 1999, 2002, and 2005: Align Indian law with TRIPS.
- Introduced product patents for pharmaceuticals.

1.11. Patent Structure and Specification

Main Parts:

- Bibliographic Section:
    A. Title
    B. Background,
    C. Summary,
    D. Detailed description,
    E. Abstract,
    F. Drawings.
- Class Codes: Identify the technology type.
- Claims (legal description of the invention): Define the scope of protection.
- Patent families, images, and legal status also part of the record.

1.12. Patent Specification Recipients

Target Audience:

- Patent agents, inventors, skilled persons, examiners, judges, investors, and consultants.
- Hypothetical Person Skilled in the Art: A technical expert or team interpreting the patent.

1.13 Types of Patent Specifications :

Provisional Specification:

i. A temporary document filed to establish priority**.**

ii**.** Used when invention details are still under development.

Complete Specification:
i.The full and detailed description of the invention.
ii.Must be filed within 12 months if provisional is used.

2. Copyright

Why Copyright is Important :

- Legal Reasons: Protects creators' rights and ensures their work isn't used unfairly.
- Ethical Reasons: Acknowledges and respects the effort and creativity of original creators.

2.1 Copyright

- Definition: Legal protection for creators over their work.
- Key Rule: You must get permission before copying, sharing, or altering copyrighted material.
- Exceptions:
    a. Some creators allow their work to be reused with credit.
    b. Content in the public domain can be used freely.

2.2 Public Domain

- Definition: Creative works not protected by copyright, free for anyone to use.
- Examples:
    a. Works published after a specific time frame (varies by country).
    b. Some government documents and images.
- Tip: Search for "public domain" resources for free-to-use content.

2.3 Fair Use

- Definition: Allows limited use of copyrighted content without permission under specific conditions.
- Four Factors to Consider:

- Amount: Use only a small portion of the original work.
- Purpose: Transform the work into something new (e.g., education, parody, criticism).
- Nature: Nonfiction works are more likely to qualify than creative or fictional works.
- Effect: Ensure the new use doesn't harm the creator's financial interests.

Common Examples:

- Schoolwork and education.
- Criticism or commentary.
- News reporting.
- Comedy and parody.

2.4 Ethical Considerations

- Respect Creators: Always credit original creators for their work.
- Think Fairness: Avoid altering or monetizing someone else's work without permission.

2.5 Summary :

- Understand copyright, public domain, and fair use.
- When in doubt, ask for permission or search for public domain content.
- Always give credit to creators—it's both legally and ethically right!

3. Trademark :

3.1 What is a Trademark?

A trademark is the legal way to protect ownership of your brand, including names, logos, or taglines associated with your business.

3.2 Key Benefits of Registering a Trademark:

- **Reduces Risk:** Protects your brand from being copied or challenged. Saves time, effort, and cost of rebranding.
- **Exclusive Rights**: Gives you legal authority to stop others from selling counterfeit products under your brand.
- **Increases Value**:Makes your brand an asset that can be franchised or sold. Companies often value brands in the billions.

Examples of Trademarks in Action

Popular examples include Apple's trademarks for iPhone, iTunes, and iPad, which protect their products and intellectual property.

Note :

Trademarks prevent competitors from using similar branding to mislead customers.

3.3 Steps to Take for Trademark Protection :

- **Start Locally:**
  - Register in your home country first to protect your primary market.
- **Expand Globally:**
  - Register in countries where you sell, export, or manufacture your products.
- **Strategic Approach:**
  - Target regions where competition or manufacturing may pose a risk to your brand.

3.4 Challenges of Not Registering a Trademark :

- **Legal Challenges:**
  - You may lose the right to your brand name or logo if someone else trademarks it first.
- **Export Barriers:**

- Some countries won't allow products to be sold or exported without a registered trademark.

- **Financial Risks:**

- Potential losses from counterfeit products or competitors stealing your branding.

3.5 Trademark Registration Process :

- **Time-Consuming:**
  - Can take 6 months to several years to complete, depending on complexity.
- **Legal Formalities:**
  - Involves filling forms and complying with specific laws.

3.6 Top Reasons to Register a Trademark Now :

- Protection from Copycats:
  - Ensure no one can misuse your brand.
- Build Brand Trust:
  - Shows customers you are serious and committed to your business.
- Financial Benefits:
  - Protect your investments in branding and avoid costly rebranding.

3.7 Why Choose Professional Help?

- Simplifies the Process:
  - Experts can navigate the complex legal requirements.
- Saves Time and Money:
  - Reduces the chance of errors or delays.
- Guarantee of Success:
  - Many services offer a money-back guarantee if registration fails.

4. Geographic indication :

4.1 Definition:

- A GI is a sign used on products with a specific geographical origin and qualities or reputation due to that origin.

Examples: Roquefort cheese, Darjeeling tea, Banaras saree.

- Covers agricultural products, wine, spirits, handicrafts, and more.

4.2 Key Characteristics of GI:

1. Geographical Link

- Must identify a product as originating from a specific place.
- The product's qualities or reputation must be due to its origin.

2. Clear Connection

- There must be a clear link between the product and its original place of production.

4.3 Need for GI:

- Knowledge Protection:Preserves traditional knowledge and community rights.
- Fair Competition: Prevents misrepresentation, ensuring products like Darjeeling tea are not sold as Assam tea.
- Quality Identification: Assures consumers of the product's origin and quality.
- Premium Pricing & Niche Marketing: Products with GIs attract higher prices.
- Rural Development: Protects and boosts local artisans and craftsmen's income.

4.4 GI Protection in India:

- Legislation:Geographical Indication of Goods (Registration and Protection) Act, 1999.
- Duration:GI registration offers 10 years of protection, renewable over time.

- GI Registry: Located in Chennai.

4.5 Examples of Registered GIs in India:

- Agricultural Products:
  - Darjeeling Tea(West Bengal)
- Handicrafts:
  - Aranmula Kannadi (Kerala)
  - Muga Silk (Assam)
- Manufactured Products:
  - Mysore Agarbathi (Karnataka)
  - Coimbatore Wet Grinder (Tamil Nadu)
- Textile Products:*
  - Orissa Pattachitra* (Odisha)
- Food Stuff:
  - Banglar Rasogolla (West Bengal)

4.6 Dispute Example:

Rasogolla Dispute (West Bengal vs. Odisha):

- West Bengal's GI registration of "Banglar Rasogolla" does not prevent Odisha from claiming a similar right.
- GI registration is not a certificate of origin but recognizes a product's distinct identity.

5. Patent - invention & innovation :

5.1 Introduction

- Inventions are created by individuals or teams, often to address specific needs.
- Good inventions make life easier or more enjoyable (e.g., paper cups, pencils, candy bars).
- Inventions and discoveries shape our world significantly, altering how we live and think.

5.2 What is an Invention?

- Something new created by arranging existing elements in novel ways.
- Often emerges after periods of preparation and refinement.
- Takes time to replace older methods or practices.

5.3 What is a Discovery?

- A principle or thing that already exists but is found or recognized for the first time.
- Difficult to distinguish between invention and discovery.
- May take generations to shift habits or thinking.

5.4 Who Invented First?

- Multiple individuals may independently develop similar inventions.

Example: The light bulb was invented by Joseph Swan (UK) and Thomas Edison (USA) in 1878, independently of each other.

5.5 What is a Patent?

- A legal document granting exclusive rights to an individual or company for an invention.
- Ensures the inventor can profit from their original idea.

5.6 What is Innovation?

- The application of improved solutions to meet new needs or requirements.

Example: Evolution of the light bulb:

- From incandescent to compact fluorescent to LED.

5.7 How Do Inventions Happen?

- Experimentation: Many inventions result from repeated trials and refining failures.
  Example: James Dyson made over 5,100 prototypes before inventing the bagless vacuum cleaner.
- Observation: Inventors notice everyday problems and create solutions.
  Example: Mary Anderson invented the windshield wiper after observing drivers wiping windows by hand.
- Refinement: Many inventions build on earlier versions.
  Example: The MP3 player evolved from earlier music recording devices and computers.
- Curiosity: A desire to solve personal or societal issues drives inventions.
  Example: Kenneth Shinozuka invented a wearable Alzheimer's sensor at age 15 out of concern for his grandfather.

5.8 Final Thoughts

- Inventions are born of perseverance, observation, refinement, and curiosity.
- Few emerge overnight; they often require years of effort and adaptation.
- Support inventors by acknowledging and protecting their efforts.

III. NON - PATENTABLE INVENTION :

- Inventions which cannot be granted patent under Section-3 of Indian patent act,1970 are called Non patentable inventions.

SECTION-3 (A)

- An invention that is frivolous or that claims anything obviously contrary to well established natural laws.

Example:

•Machine that gives more than 100% performance.

•Perpetual machine.

SECTION-3 (B)

- An invention, the primary or intended use of which would be contrary to law or morality or injurious to public health.

Example:

•The Oncomouse, genetically modified to develop cancer for the purposes of medical research is not patentable because cancer can be transmitted to public.

SECTION-3 (C)

- The mere discovery of a scientific principle or the formulation of an abstract theory or discovery of any living thing or discovery of non–living substance occurring in nature.

Example:

•Newton's Laws.

•Discovery of micro-organism.

SECTION-3 (D)

- The mere discovery of any new property or new use for a known substance or of the mere use of a known process, machine or apparatus unless such known process results in a new product or employs at least one new reactant.

Example:

• New use of Aspirin for heart ailments.

• Mere new uses of Neem.

SECTION-3 (E)

- A substance obtained by a mere admixture resulting only in the aggregation of the properties of the components thereof or a process for producing such substance.

Example:

• Combiflam[Paracetamol (Antipyretic) + Brufen (analgesic)].

SECTION-3 (F)

- The mere arrangement or rearrangement or duplication of known devices, each functioning independently of one another in a known way.

Example:
• A Bucket fitted with torch.
• An Umbrella with a fan.
• A Clock and radio in a single cabinet.

SECTION-3 (H)

- A method of agriculture or horticulture.

Example:
• Cultivation of algae ,
• Producing new form of a known plant,
• Preparation of an improved soil.
Note :
But Agricultural Equipments are patentable.

SECTION-3 (I)

- Any process for the medicinal, surgical, curative, prophylactic diagnostic, therapeutic or other treatment of human beings or any process for a similar treatment of animals to render them free of disease or to increase their economic value or that of their products.

Example:
• Removal of cancer tumor.
• Removal of dental plaque and carries.
• Surgical processes.

SECTION-3 (J)

- Plants and animals in whole or any part thereof other than micro organisms but including seeds, varieties and species and essentially biological processes for production or propagation of plants and animals.

Example:
• Clones and new varieties of plants.
• A process for production of plants or animals.

SECTION-3 (K)

- A mathematical or business method or a computer program per se or algorithms.

Example:
•Computer program by itself or as a record on a carrier, But combination of hardware and software is patentable.
• Online chatting method.

SECTION-3 (L)

- A literary, dramatic, musical or artistic work or any other aesthetic creation whatsoever including cinematographic works and television productions.

Example:
•These subject matters fall under the copyright protection.

SECTION-3 (M)

- A mere scheme or rule or method of performing a mental act or method of playing a game.

Example:
• Method for solving a crossword puzzle,
• Method of learning a language

SECTION-3 (N)

- A presentation of information.

Example:
• spoken words
• symbols
• diagrams

SECTION-3 (O)

- Topography of integrated circuits.

Example: Mask works circuits layout

SECTION (P)

- An invention which in effect, is traditional knowledge or which is an aggregation or duplication of known properties of traditionally known component or components.

Example: Turmeric.

SECTION-4

Inventions relating to atomic energy not patentable.

Example:

•Inventions relating to compounds of Uranium, Beryllium, Thorium, Plutonium, Radium, Graphite, Lithium are not patentable.